

		does not appear to support Defendants' liability. Permitting Richard onto the Property was also "purely personal" and independent from the scope of Thomas's employment, even though Thomas had the duty to notify Defendants of Richard's prior violence. The second respondeat superior test does not appear to apply. It appears Defendants have met their initial burden on this issue. Plaintiff made no specific arguments related to the respondeat superior issue in the opposition and has not met the transferred burden. The Motion is GRANTED as to the issue of respondeat superior liability. 4) Defendants' Objections <u>Objections to Deebes Decl.:</u> Overrule. <u>Objections to Pouzbouris Decl.:</u> Sustain as to No. 7 (hearsay – last sentence). Overrule as to the remainder. <u>Objections to Lingenfelter Decl.:</u> Overrule as to Nos. 1 – 4 (Police custodian of records declaration was provided authenticating the exhibits – Ex. 4 and records prepared by public employee in course and scope of their duties.) Defendants to give notice.
9	Kim v. St. Joseph Hospital of Orange	Cont. to 4/28.
10	Dadras v. Canyon Estates Community Assn.	O/C
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